

PEOPLE VS. ROSS

Case Number: CVG21-0000575

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant Lexington National Insurance Corporation moves to set aside summary judgment, discharge forfeiture, and exonerate bail. Respondent prosecuting agency County of Shasta opposes the motion. The Court notes that the County's Opposition was filed one day late. Plaintiff's Reply was filed four days late.

Defendant's Notice of Motion indicates that this Motion is made on the grounds that the Court lacked jurisdiction to enter a summary judgment, and CCP § 473. Code of Civil Procedure § 473(b) provides in relevant part, that the court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and *shall be made within a reasonable time, in no case exceeding six months*, after the judgment, dismissal, order, or proceeding was taken.

Penal Code § 1305, regarding forfeiture of the undertaking of bail, provides at subsection (j), that a motion filed in a timely manner within the 180-day period may be heard within 30 days of the expiration of the 180-day period. The court may extend the 30-day period upon a showing of good cause.

Here, Defendant failed to appear on March 9, 2020, and notice of bail forfeiture was properly prepared and mailed to defendant's bail bond surety on March 10, 2020. The period for setting aside the forfeiture of the bond lapsed without defendant appearing in court, and without the bail bond agent having shown to the satisfaction of the court that the forfeiture be vacated and the bond exonerated. Therefore, Summary Judgment was entered on May 10, 2021. The instant Motion to Set Aside was filed March 27, 2025, nearly four years later, without any explanation for the delay in filing. Moreover, a review of the case file reveals that the bail agent previously moved to set aside summary judgment, vacate forfeiture, and exonerate bail, on June 3, 2021. That Motion was denied after hearing on June 28, 2021. Plaintiff fails to address the estoppel effect of the prior decision. Plaintiff does not request reconsideration of that decision. The Motion is DENIED. A proposed order has been lodged and will be modified and executed by the Court.

WARD, ET AL. VS. VIBRA HEALTHCARE, LLC, ET AL.

Case Number: 23CV-0203171

Tentative Ruling on Motion for Summary Judgment: Defendants Vibra Healthcare, LLC and Vibra Hospital of Northern California move for summary judgment on the First Amended Complaint filed by Plaintiffs Richard Ward and Houva Ward on June 5, 2024. The First Amended Complaint alleges causes of action for Neglect and Physical Abuse of a Dependent Adult and Loss of Consortium. As a preliminary matter, the Reply was filed on May 5, 2025. Replies are due no less than eleven days prior to the hearing date. CCP § 437c(b)(4). No explanation was provided for the Reply being late, however, the Court will exercise its discretion to consider the late filed Reply as it does not change the outcome of the Court's tentative ruling.

Summary judgment may be granted where it is shown that the action has no merit or that there is

no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(o); *Aguilar, supra*, at 849.

In the First Cause of Action, Plaintiffs allege Neglect and Physical Abuse of a Dependent Adult. In ¶ 27, Plaintiffs specifically refer to Welfare and Institutions Code § 15657, which is the attorney fee provision of the Elder Abuse and Dependent Adult Civil Protection Act (“the Act”). W&I §§ 15600, et seq. Rather than addressing the First Cause of Action as alleged under the Act, Defendants addressed the First Cause of Action as if Plaintiffs alleged medical negligence. While neglect under the Act and medical negligence are similar, they are not the same.

It is true that statutory elder abuse includes “neglect as defined in Section 15610.57” (Welf. & Inst.Code, § 15657), which in turn includes negligent failure of an elder custodian “to provide medical care for [the elder’s] physical and mental health needs” (*id.*, § 15610.57, subd. (b)(2)). But as we explained in *Delaney*, “neglect” within the meaning of Welfare and Institutions Code section 15610.57 covers an area of misconduct distinct from “professional negligence.” As used in the Act, neglect refers not to the substandard performance of medical services but, rather, to the “failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.” (*Delaney, supra*, 20 Cal.4th at p. 34, 82 Cal.Rptr.2d 610, 971 P.2d 986.) Thus, the statutory definition of “neglect” speaks not of the *undertaking* of medical services, but of the failure to *provide* medical care. (*Ibid.*) Notably, the other forms of abuse, as defined in the Act—physical abuse and fiduciary abuse (Welf. & Inst.Code, § 15657)—are forms of intentional wrongdoing also distinct from “professional negligence.” (*Delaney, supra*, at p. 34, 82 Cal.Rptr.2d 610, 971 P.2d 986.)

Covenant Care, Inc. v. Superior Court (2004) 32 Cal. 4th 771, 783.

(a) “Neglect” means either of the following:

(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.

(2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.

(b) Neglect includes, but is not limited to, all of the following:

(1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.

(2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person

voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.

(3) Failure to protect from health and safety hazards.

(4) Failure to prevent malnutrition or dehydration.

(5) Substantial inability or failure of an elder or dependent adult to manage their own finances.

(6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.

(c) Neglect includes being homeless if the elder or dependent adult is also unable to meet any of the needs specified in paragraphs (1) to (5), inclusive, of subdivision (b).

W&I § 15610.57.

“Physical abuse” means any of the following:

(a) Assault, as defined in Section 240 of the Penal Code.

(b) Battery, as defined in Section 242 of the Penal Code.

(c) Assault with a deadly weapon or force likely to produce great bodily injury, as defined in Section 245 of the Penal Code.

(d) Unreasonable physical constraint, or prolonged or continual deprivation of food or water.

...

(f) Use of a physical or chemical restraint or psychotropic medication under any of the following conditions:

(1) For punishment.

(2) For a period beyond that for which the medication was ordered pursuant to the instructions of a physician and surgeon licensed in the State of California, who is providing medical care to the elder or dependent adult at the time the instructions are given.

(3) For any purpose not authorized by the physician and surgeon.

W&I 15610.63.

Defendants provided an expert, Cheree White, R.N. who reviewed the First Amended Complaint and Plaintiff Richard Ward’s medical records and opined that, “There is no evidence in the medical records to show that Mr. Ward was physically abused.” *Decl. White* ¶ 10. Ms. White also opined that “Mr. Ward consented to all procedures that were performed as part of his care and treatment at Vibra. There is nothing in the medical records to suggest that Mr. Ward was physically abused by anyone.” *Id.* ¶ 11. While all of the briefing was directed at medical negligence, the expert’s opinion included the actual allegations in the First Cause of Action. The Court notes that the First Amended Complaint contains very general allegations without much detail. The scope of the defendant’s initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18. Defendants have presented expert opinion that refutes the claims made by Plaintiffs. Therefore, Defendants have met their initial burden and the burden shifts to Plaintiffs to show a triable issue of material fact.

Plaintiffs provide their own declarations detailing the care Mr. Ward received while hospitalized. This includes being provided a bed that was too small for his frame and being tied to the bed without his consent and over the objection of his wife. The Wards further provided evidence that

Mr. Ward had a large sacral open wound and no control of his bowels, yet Defendants' staff left Mr. Ward sitting in his own feces for more than two or three hours before changing him. Mrs. Ward declared that she complained about the bed length, the restraints, and time it took to change Mr. Ward on numerous occasions. Plaintiffs' expert, Pam Sharkey, R.N. reviewed the First Amended Complaint, the medical records, and the declarations from Plaintiffs and Defendants' expert. Ms. Sharkey opined that Defendants neglected Mr. Ward by letting him sit in his own feces and failing to provide a proper bed. Ms. Sharkey further provides the regulations regarding physical restraint and opines that Defendants did not follow them by failing to obtain consent from Mr. Ward and failing to inform the Wards that they had the right to refuse. Plaintiffs have raised triable issues of material fact as to the First Cause of Action.

The Second Cause of Action alleged Loss of Consortium. "There are four elements to a cause of action for loss of consortium: '(1) a valid and lawful marriage between the plaintiff and the person injured at the time of the injury; (2) a tortious injury to the plaintiff's spouse; (3) loss of consortium suffered by the plaintiff; and (4) the loss was proximately caused by the defendant's act.' " *Vanhooser v. Superior Court* (2012) 206 Cal. App. 4th 921, 927, citing *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 746, fn. 2. Both parties agree that this claim is derivative of the First Cause of Action. The same analysis applies.

The Motion for Summary Judgment is **DENIED**. Defendants are to provide an Order consistent with the Court's ruling.

WELLS FARGO BANK, N.A. VS. KAISER

Case Number: 24CVG-00725

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Wells Fargo Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Lindsay Kaiser by mail on January 28, 2025. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order has been lodged and will be executed.